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Proposed California Legislation Aims To Phase Out Ultra-Processed Foods From School Meals

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California Assembly Bill 1264 reflects continued state interest

in restrictive legislation directed at the food and beverage

industry and, in particular, food additives.

On March 19, 2025, California legislator Jesse Gabriel

(D-Encino) introduced a bipartisan bill, AB

1264, aimed at eliminating certain, as yet undetermined,

"ultra-processed" foods ("UPFs") from

California public school meals by 2032. In introductory remarks, Gabriel explained the legislation

would require the California Office of Environmental Health Hazard

Assessment to work with University of California researchers to

determine which UPFs should be removed from school meals,

reportedly starting as early as 2028. This determination would be

based on factors such as whether the product includes additives

that are banned or restricted in other jurisdictions and whether

research links the product to certain health harms.

AB 1264 is part of a broader push to regulate food products

statewide. In recent years, California passed the California Food Safety Act, banning four

common food additives, and the California School Food Safety Act, banning six

food dyes from public school meals. In January 2025, Governor Gavin

Newsom signed an Executive Order to investigate ways to limit

the use of UPFs, synthetic food dyes, and food additives in

California.

If enacted, AB 1264 would create the first statutory definition

of UPFs, although the proposed definition is not currently available. If a statutory definition of UPFs is established, it may have ripple effects nationwide as states consider restrictive legislation directed at the food and beverage industry. Already, New York and Illinois followed the California Food Safety Act with similar proposals. West Virginia recently banned seven food dyes, and more than 25 states are considering similar legislation.

UPFs and food additives have also garnered federal attention. Evaluation of food chemical safety has remained a top priority of the new Human Foods Program of the U.S. Food and Drug Administration ("FDA"). FDA recently revoked the authorization to use FD&C Red Dye No. 3 and published a consolidated list of food contaminant levels. Implementing increased restrictions on the food and beverage industry is consistent with Health and Human Services Secretary Robert F. Kennedy Jr.'s aim to "remove harmful chemicals" from America's food supply through his Make America Healthy Again platform.

The content of this article is intended to provide a general guide to the subject matter. Specialist advice should be sought about your specific circumstances.

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